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A Death Sentence and A Tea Party

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If the Indian State doesn't yield to reason, Mohammed Afzal Guru will die. Much is being made of the day the Kashmiri man will be hanged. It is Jummatul Wida, the last solemn Friday of the holy month of Ramazan. Some politicians, playing to the galleries, have argued that the hanging should be postponed as it could otherwise send a wrong signal to Kashmir's alienated Muslims. The suggestion of course is meaningless, if also insensitive. There is no auspicious day to execute someone, legally or otherwise.

In the absence of any other remedy, Afzal and his family will no doubt seek a presidential pardon even if this means grudging admission of guilt. The long- drawn mechanism involved in the President's decision could allow him to live for a few more weeks, perhaps months, if he is lucky. But he will live on death row in Tihar Jail anxious to hear a verdict which can go any way. If Afzal has political sense he will know that in the prevailing atmosphere of hard-line measures to combat terrorism, anyone who takes a decision to spare his life would be mocked for the rest of their lives by India's right-wing Hindutva hordes.

The one material defence that could save Afzal had come not from his state-sponsored defence counsel at the trial court but from an account of the tragedy given by his wife Tabassum. It was published in the *Kashmir Times* on 21 October 2004.[1] The forceful argument of that appeal went unheeded at the trial court. Thus the most compelling reason to free Afzal was never produced before the trial judge. Tabassum was not summoned as a witness even once. We'll come to the crux of her harrowing tale in a moment.

However, at the heart of Afzal's woes is the Indian strategy to combat terrorism. The signal to adopt a hard-line position has come from the very top. It is thus that we find former police chief K.P.S. Gill, of Punjab notoriety, heading to the Indian heartland to exterminate Naxalites across this vast